

Supreme Court of the State of New York
Appellate Division, First Judicial Department

Present – Hon. Barbara R. Kapnick,
Martin Shulman
Julio Rodriguez III
Bahaati E. Pitt-Burke
John R. Higgitt,

Justice Presiding,

Justices.

The People of the State of New York,
Respondent,

-against-

Motion No. 2025-03413
Ind. No. 70358/24
Case No. 2025-03762

Brian Torres,
Defendant-Appellant.

Defendant having moved for an extension of time in which to file a notice of appeal from the judgment of the Supreme Court, New York County, rendered on or about July 01, 2024, for a waiver of costs, fees, and expenses on the appeal, assignment of counsel, and related relief,

Now, upon reading and filing the papers with respect to the motion, and due deliberation having been had thereon,

It is ordered that the motion is granted to the extent of deeming the notice of appeal as timely filed and the motion, to the extent that it seeks poor person relief, is denied, with leave to renew upon defendant's submission of a notarized affidavit, in compliance with CPLR 1101 and 22 NYCRR 1250.4(d)(1) and (4).

ENTERED: March 03, 2026



Susanna Molina Rojas
Clerk of the Court